

Reason, and Meditation, is presumed to be in those most, that have had most leisure, and had the most inclination to meditate thereon: Secondly, *Contempt of unnecessary Riches*, and Preferments. Thirdly; *To be able in judgement to divest himselfe of all feare, anger, hatred, love, and compassion*. Fourthly, and lastly, *Patience to heare; diligent attention in hearing; and memory to retain, digest and apply what he hath heard*.

The difference and division of the Lawes, has been made in divers manners, according to the different methods, of those men that have written of them. For it is a thing that dependeth not on Nature, but on the scope of the Writer; and is subservient to every mans proper method. In the Institutions of *Justinian*, we find seven sorts of Civill Lawes. 1. The *Edicts, Constitutions, and Epistles of the Prince*, that is, of the Emperour; because the whole power of the people was in him. Like these, are the Proclamations of the Kings of *England*.

2. *The Decrees of the whole people of Rome* (comprehending the Senate,) when they were put to the Question by the *Senate*. These were Lawes, at first, by the vertue of the Sovereign Power residing in the people; and such of them as by the Emperours were not abrogated, remained Lawes by the Authority Imperiall. For all Lawes that bind, are understood to be Lawes by his authority that has power to repeale them. Somewhat like to these Lawes, are the Acts of Parliament in *England*.

3. *The Decrees of the Common people* (excluding the Senate,) when they were put to the question by the *Tribune* of the people. For such of them as were not abrogated by the Emperours, remained Lawes by the Authority Imperiall. Like to these, were the Orders of the House of Commons in *England*.

4. *Senatus consulta*, the *Orders of the Senate*; because when the people of *Rome* grew so numerous, as it was inconvenient to assemble them; it was thought fit by the Emperour, that men should Consult the Senate, in stead of the people: And these have some resemblance with the Acts of Counsell.

5. *The Edicts of Prators*, and (in some Cases) of the *Ædiles*: such as are the Chief Justices in the Courts of *England*.

6. *Responsa Prudentum*; which were the Sentences, and Opinions of those Lawyers, to whom the Emperour gave Authority to interpret the Law, and to give answer to such as in matter of Law demanded their advice; which Answers, the Judges in giving Judgement were obliged by the Constitutions of the Emperour to observe: And should be like the Reports of Cases Judged, if other Judges be by the Law of *England* bound to observe them. For the Judges of the Common Law of *England*, are not properly Judges, but *Furis Consulti*; of whom the Judges, who are either the Lords, or Twelve men of the Country, are in point of Law to ask advice.

7. Also, *Unwritten Customs*, (which in their own nature are an imitation of Law,) by the tacite consent of the Emperour, in case they be not contrary to the Law of Nature, are very Lawes.

Another division of Lawes, is into *Naturall* and *Positive*. *Natu-*